

Peer Response

by [Abdulla Husain Salem Hadna Almessabi](#) - Friday, 12 December 2025, 10:42 AM

The ethical basis of your post is effective as it addresses the responsibilities of Abi to various stakeholders and appropriately characterises the act of selective reporting as a violation of professional ethics, such as the ACM Code (ACM, 2018). I should like to continue your argument and explore the exact mechanism of harm in a selective analysis and the legal doctrine that can bring this ethical violation to the level of professional liability.

Although you are correct that disseminating positive results only helps in misleading marketing, the greater evil is to misguide the scientific process of making decisions.

Performing HARKing(Hypothesising After the Results are Known) or cherry-picking a few notable correlations produces a false story on the basis of valid data, and sometimes that can be even more insidious than blatant fabrication (Rubin, 2017). This action is directly against the BCS Code that mandates the members to exercise due regard to... the effective and efficient use of resources (BCS, 2015, p. 3) since it is a misapplication of analytical resources to produce a desired, not a real, result.

Moreover, your argument on possible legal matters is essential. Other than the general consumer protection laws, the professional status of Abi can subject him to the jurisdiction of professional negligence. An example used in common law jurisdictions is that the professional has a duty of care to the person(s) that he or she can reasonably foresee will be impacted by his work. Should Abi intentionally aid in giving a false statement through the omission of material facts on safety, and a consumer suffers loss, he may be found guilty of breaching such a duty (Hedley Byrne and Co Ltd v Heller and Partners Ltd [1964] AC 465). This is a legal idea that supports the moral requirement you outlined.

Thus, your idea to proceed with the course of pushing back and going to ethics panels is not only recommendable but a risk-reducing policy that must be taken. Writing up his concerns and getting institutional support leaves a formal record which proves that he took up his professional judgement, which is one of the major defences against complicity or negligence. In case the top management demands suppression, his ethical obligation of avoiding harm (ACM, 2018) and upholding the public good might actually mean challenging whistleblowing to a regulatory agency, as it is the duty of both the ACM and BCS codes.

References

ACM. (2018). ACM Code of Ethics and Professional Conduct. Available at: <https://www.acm.org/code-of-ethics>

BCS. (2015). Code of Conduct for BCS Members. The Chartered Institute for IT.

Hedley Byrne & Co Ltd v Heller & Partners Ltd [1964] AC 465.

Rubin, M. (2017). When does HARKing hurt? Identifying when different types of undisclosed post hoc hypothesising harm scientific progress. *Review of General Psychology*, 21(4), 308-320.

Re: Initial Post

by David Abiodun - Saturday, 13 December 2025, 5:12 PM

Peer Response

Abdulrahman presents a clear and well-structured argument grounded in professional codes, particularly the ACM and BCS principles of honesty and avoidance of harm. This framing is appropriate; however, the ethical issue extends beyond accuracy into the governance of how statistical narratives are constructed. Selective disclosure, even where individual results are technically correct, represents a failure of transparency rather than simple carelessness.

The concern that repeated analyses yield only favourable results aligns with empirical evidence on questionable research practices. Large-scale reviews show that selective reporting and outcome-driven analysis remain widespread across disciplines, often normalised by organisational pressure (Xie, Wang and Kong, 2021). This supports Abdulrahman's claim that trust in statistics is undermined not by isolated misconduct, but by systemic tolerance of partial reporting.

The recommendation that Abi escalate concerns is ethically sound, though escalation should follow documented attempts at methodological transparency and explicit disclosure of uncertainty. Recent research in data-intensive sectors demonstrates that governance failures around selective modelling can lead to long-term regulatory and reputational harm, even where no immediate legal breach occurs (Rizinski et al., 2022). In this context, prioritising public good over client pressure is not only ethical but strategically necessary.

Overall, Abdulrahman's post effectively anchors professional responsibility in recognised codes, and this is further strengthened by its grounding in empirical evidence on research misconduct and contemporary data-ethics governance.

References

ACM (2022) ACM Code of Ethics and Professional Conduct. Available at: <https://www.acm.org/code-of-ethics> (Accessed: 6 December 2025).

Rizinski, M., Rahman, T., Alabdulatif, A. and Kuo, T. (2022) 'Ethically responsible machine learning in fintech', *IEEE Access*, 10, pp. 97531–97552. <https://doi.org/10.1109/ACCESS.2022.3202889>

Xie, Y., Wang, K. and Kong, Y. (2021) 'Prevalence of research misconduct and questionable research practices: A systematic review and meta-analysis', *Science and Engineering Ethics*, 27(41). <https://doi.org/10.1007/s11948-021-00314-9>